

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher DeNitto	Team: Team # 2	CCRB Case #: 200515485	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 12/28/2005 1:00 PM	Location of Incident: 69th Precinct stationhouse	18 Mo. SOL 6/28/2007	Precinct: 69
Date/Time CV Reported Fri, 12/30/2005 8:29 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/30/2005 8:29 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Erick Charles	22070	932141	069 PCT
2. POM Patrick Smith	29672	931998	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Clint Mcpherson	00000	903009	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Erick Charles	Force: PO Erick Charles slammed § 87(2)(b) against a car.	A . Unsubstantiated
B . POM Erick Charles	Force: PO Erick Charles used a chokehold against § 87(2)(b)	B . Unsubstantiated
C . POM Patrick Smith	Force: PO Patrick Smith used physical force against § 87(2)(b)	C . Unsubstantiated

Synopsis

On December 28, 2005, at approximately 10:45am § 87(2)(b) was arrested by PO Frank Gonzalez for possessing a forged 20 day temporary New Jersey registration on his vehicle. § 87(2)(b) was taken to the 69th Precinct where he placed in a holding cell to await transportation to central booking. While in the cell § 87(2)(b) became loud and boisterous and was yelling loud enough for everyone in the precinct to hear. § 87(2)(b) was yelling, “Why does he remember me from 11 years ago, you’re a loser, what type of people do things like this, this is harassment” in reference to PO Gonzalez making a comment to him about remembering him from High School. § 87(2)(b) was asked numerous times to calm down but he did not, prompting Lt. Clint McPherson to order that § 87(2)(b) be transported immediately to central booking. Lt. McPherson asked PO Erick Charles and PO Patrick Smith to carry out this task. PO Charles and PO Smith removed § 87(2)(b) from his cell and escorted him out the back door of the precinct to a police car. § 87(2)(b) alleged that PO Charles then slammed him stomach first against the back of the police car (**Allegation A**) and then grabbed him around the throat, placing him into a chokehold (**Allegation B**). § 87(2)(b) stated that at this point his pants fell down around his ankles making it difficult for him to get into the police car. § 87(2)(b) could not pick his pants up on his own and PO Charles and PO Smith allegedly refused to assist him. Seeing that PO Charles was having difficulty placing § 87(2)(b) into the car PO Smith approached § 87(2)(b) grabbed him by the handcuffs and dragged him backward into the precinct (**Allegation C**). § 87(2)(b) alleged that while he was being dragged his left shoulder struck a metal mailbox, that was located between the back door of the precinct and the holding cell, causing an abrasion to the back of his left shoulder. § 87(2)(b) was placed back into the holding cell and Lt. McPherson called ESU and an ambulance to the scene. ESU arrived and placed § 87(2)(b) into a “wrap” and put him into an ambulance, which transported § 87(2)(b) to § 87(2)(b) as an EDP. § 87(2)(b)

§ 87(2)(g)

It has therefore been recommended that *Allegations A, B and C* be *Unsubstantiated*.

Summary of Complaint

On December 30, 2005, § 87(2)(b) called the CCRB and filed a complaint. § 87(2)(b) stated that he was arrested by PO Gonzalez for § 87(2)(b) and taken to the 69th Precinct where he was placed in a holding cell. PO Charles and PO Smith later removed § 87(2)(b) from the cell and were going to transport him to central booking. § 87(2)(b) stated that PO Charles pushed him towards the car and then placed him in a chokehold. § 87(2)(b)'s pants had fallen down around his ankles and he asked PO Charles and PO Smith numerous times to pick them up but they refused. § 87(2)(b) stated that PO Smith then grabbed him by the handcuffs and dragged him backward into the precinct causing him to hit his left shoulder on a metal mailbox.

§ 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on January 12, 2006. § 87(2)(b) stated that on December 28, 2005, he was arrested for § 87(2)(b) by PO Frank Gonzalez, and taken to the 69th Precinct. § 87(2)(b) was able to obtain PO Gonzalez's name because he was his arresting officer. § 87(2)(b) admitted that he was in possession of a forged temporary license plate, which was forged by someone else. PO Gonzalez told § 87(2)(b) that he remembered him from § 87(2)(b).

§ 87(2)(b). § 87(2)(b) was placed in a holding cell after arriving at the 69th Precinct. While in the holding cell § 87(2)(b) stated that he was yelling “why does he remember me from 11 years ago, you’re a loser, what type of people do things like this, this is harassment” loud enough for PO Gonzalez to hear. § 87(2)(b) was warned that he was making too much noise but he continued to yell, so § 87(2)(b) was moved to a holding cell in the back of the Precinct. § 87(2)(b) continued to make noise so an officer told § 87(2)(b) that if he continued to make noise he would be taken to the psychiatric ward. § 87(2)(b) then transported by two unidentified officers to § 87(2)(b). § 87(2)(b) stated that he did not have a problem with these two officers because they were “stand up guys.” § 87(2)(b) was evaluated at § 87(2)(b) and released and was taken back to the 69th Precinct where he was again placed in a holding cell. At about 4:30pm § 87(2)(b) was taken out of the holding cell and was to be transported to central booking by PO Erick Charles and PO Patrick Smith. PO Charles and PO Smith escorted § 87(2)(b) out of the Precinct and to the police car. § 87(2)(b) stated that PO Charles slammed him against the back of the police car, stomach first, and then grabbed him around the throat. During this time, § 87(2)(b)’s pants had fallen around his ankles because his belt had been removed. § 87(2)(b) asked PO Charles and PO Smith numerous times to pick up his pants but they did not. § 87(2)(b) stated that he was not struggling or resisting while PO Charles was trying to put him in the car however it was difficult for § 87(2)(b) to get in the car because his pants were around his ankles and it was difficult for him to sit down. Seeing that PO Charles was having difficulty placing § 87(2)(b) in the car, PO Smith grabbed § 87(2)(b) by the handcuffs and dragged him backwards into the Precinct. While PO Smith was dragging § 87(2)(b) by his handcuffs, § 87(2)(b) hit his left shoulder on a mailbox, causing a minor abrasion to the back of his left shoulder. PO Smith then placed § 87(2)(b) back into the holding cell. § 87(2)(b) stated that a Lieutenant (described by § 87(2)(b) as a White male, 5’6-5’7 and 170-180lbs with short hair) then came over to the cell and told him to calm down. § 87(2)(b) knew the officer was a Lieutenant because he was wearing a white shirt and § 87(2)(b) heard other officers refer to him as Lieutenant. § 87(2)(b) attempted to explain to the Lieutenant what PO Charles and PO Smith had done earlier, and the Lieutenant responded, “shut up and calm down.” The Lieutenant then threatened § 87(2)(b) saying that he was going to call the emergency unit and have them bring “the wrap.” § 87(2)(b) stated that the Lieutenant eventually did call for “the wrap” and § 87(2)(b) voluntarily lied down and allowed himself to be wrapped. § 87(2)(b) was placed on a gurney and as he was being wheeled to the ambulance PO Gonzalez took a picture of § 87(2)(b) in “the wrap.” PO Charles and PO Smith then transported § 87(2)(b) to § 87(2)(b) in an ambulance.

Results of Investigation

Officer Identification

§ 87(2)(b) identified PO Charles and PO Smith. § 87(2)(b) was able to provide PO Charles badge number and PO Smith’s name to the CCRB at the time he called in his complaint. § 87(2)(b) was able to read to obtain this information by reading it off of PO Charles’ and PO Smith’s uniform. PO Charles and PO Smith acknowledged their involvement in the incident during their CCRB interviews. During his CCRB interview PO Charles provided Lt. McPherson’s name as the supervisor who instructed he and PO Smith to transport § 87(2)(b) to central booking.

Officer Statements

PO Erick Charles

PO Charles was interviewed at the CCRB on March 15, 2006. On December 28, 2005, PO Charles worked from 4:00pm to 12:00am with PO Patrick Smith. PO Charles was in uniform and on duty and assigned to sector “C.” PO Charles has an entry in his memo book regarding this incident that reads: “1923hrs transported 1 EDP to § 87(2)(b)”

PO Charles stated that when he arrived back at the Precinct from traffic court Lt. Clint McPherson told he and PO Smith to transport § 87(2)(b) to central booking. PO Charles stated that the day tour officers arrested § 87(2)(b) earlier in the day. PO Charles and PO Smith removed § 87(2)(b) from

the holding cell and PO Smith placed § 87(2)(b) in handcuffs. PO Charles stated that he had no interaction with § 87(2)(b) prior to removing him from the holding cell and did not hear anything § 87(2)(b) said prior to that point. PO Charles and PO Smith then escorted § 87(2)(b) to an RMP parked in back of the Precinct. PO Charles stated that as § 87(2)(b) was walking his pants fell down around his ankles and PO Charles picked them up for § 87(2)(b) and told him to hold his pants up. PO Charles stated that § 87(2)(b) refused to get into the car and began yelling, "Help, help I don't want to go." PO Charles stated that he and PO Smith decided to bring § 87(2)(b) back into the precinct and place him back into the cell. PO Charles stated that at no time did PO Smith or himself use physical force in an attempt to get § 87(2)(b) into the police car. PO Charles maintained that he did not slam § 87(2)(b) against the car or place him in a chokehold. PO Charles stated that § 87(2)(b) walked back into the precinct on his own and was not dragged in by PO Smith. PO Charles stated that § 87(2)(b) did not sustain any injuries during this time. PO Charles informed Lt. McPherson that § 87(2)(b) refused to get into the car and Lt. McPherson then called ESU. ESU arrived on the scene and placed § 87(2)(b) in a "wrap" and into an ambulance. PO Charles rode in the ambulance with § 87(2)(b) to § 87(2)(b) and PO Smith followed in a police car. PO Charles stated that PO Frank Gonzalez was § 87(2)(b)'s arresting officer but PO Charles was not sure if PO Gonzalez was still in the precinct at the time of the incident.

PO Patrick Smith

PO Smith was interviewed at the CCRB on May 19, 2006. On December 28, 2005, PO Smith worked from 4:00pm until 12:00am with PO Erick Charles. PO Smith was on duty and in uniform and was assigned to a marked RMP. PO Smith did not have his memo book with him at the time of the interview and could not recall if he had any entries regarding this incident.

PO Smith stated that § 87(2)(b) was arrested earlier in the day on December 28, 2005, and was being held in the holding cell inside the 69th Precinct. PO Smith was not involved in § 87(2)(b)'s arrest and was not aware what § 87(2)(b) was arrested for or who his arresting officer was. PO Smith and PO Charles were asked by a Lieutenant to take § 87(2)(b) out of the cell and transport him to central booking. PO Smith could not recall which Lieutenant gave the order to transport § 87(2)(b). PO Smith and PO Charles escorted § 87(2)(b) out of the holding cell and outside to the back of the precinct where their car was parked. At this time § 87(2)(b) began yelling and screaming that PO Smith and PO Charles were, "Raping him and killing him." PO Smith stated that § 87(2)(b) was placed into the car briefly but was quickly removed and escorted back into the precinct. PO Smith stated that § 87(2)(b) got into the car willingly and at no time did his pants fall down. PO Smith stated that no force was used to get § 87(2)(b) into the car and at no time did PO Charles slam § 87(2)(b) against the car or put him in a chokehold. PO Smith maintained that there was no struggle with § 87(2)(b) at all. PO Smith stated that he was holding § 87(2)(b) by the arm while escorting him back into the precinct. PO Smith maintained that he did not drag § 87(2)(b) backward at any time nor did § 87(2)(b) strike the back of his shoulder on a metal mailbox. PO Smith stated that there is no mailbox or anything of that nature between the back door of the precinct and the holding cell. It is approximately 10-15ft from the back door to the holding cell. PO Smith did not observe any injuries on § 87(2)(b) at this time. § 87(2)(b) was placed back into the holding cell and the Lieutenant called ESU who arrived on the scene a placed a "spit mask" and restraints on § 87(2)(b) and then strapped him to a gurney. § 87(2)(b) was declared an EDP and transported to § 87(2)(b) in an ambulance.

Lt. Clint McPherson

Lt. McPherson was interviewed at the CCRB on March 31, 2006. On December 28, 2005, Lt. McPherson worked from 6:45am to 3:20pm as the desk officer in the 69th Precinct. Lt. McPherson was on duty and in uniform and was not working with a partner. Lt. McPherson did not have any entries in his memo book regarding this incident.

Lt. McPherson stated that § 87(2)(b) who had been arrested earlier in the day, was being loud and was very irate in the holding cell. Lt. McPherson stated that § 87(2)(b) was "Cursing and carrying on" however Lt. McPherson could not recall what § 87(2)(b) was saying. Lt. McPherson stated that because § 87(2)(b) was so irate he assigned PO Charles and PO Smith to transport § 87(2)(b) immediately to central booking. PO Charles and PO Smith removed § 87(2)(b) from his cell and

escorted him to the back of the precinct where their car was parked. Lt. McPherson stated that he did not see anything that took place once PO Charles and PO Smith escorted § 87(2)(b) out the back door. Lt. McPherson stated that a short time later PO Charles and PO Smith came back into the precinct with § 87(2)(b) and they informed Lt. McPherson that § 87(2)(b) refused to get into the car. § 87(2)(b) was placed back into the holding cell and Lt. McPherson called ESU. Lt. McPherson stated that he did not speak with § 87(2)(b) and at no time did § 87(2)(b) try and tell him that PO Charles and PO Smith used physical force on him. Lt. McPherson maintained that at no time did § 87(2)(b) make any protest about PO Charles and PO Smith. Lt. McPherson stated that at one time he might have told § 87(2)(b) to “Shut up and be quiet” but Lt. McPherson was not positive. ESU arrived on the scene and placed § 87(2)(b) in a “wrap” and transported him to the hospital in an ambulance. Lt. McPherson stated that he was not present while ESU was “wrapping up” § 87(2)(b).

MOS Not Interviewed

§ 87(2)(g)

Medical Documents

§ 87(2)(a) PHL § 18(6)

Police Documents

UF-61 Complaint Report: The complaint report states that § 87(2)(b) was observed operating a motor vehicle with an obstructed plate (dark plastic cover over plate). During the car stop the temporary registration on the rear bumper was determined to be a forged instrument (*Enc. 12a-12b*).

Property Clerks Invoice: Lists 1 forged New Jersey license plate and 1 plastic plate cover as property confiscated from § 87(2)(b) (*Enc. 13*).

Disposition of Charges

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conviction History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Subject Officers CCRB History

PO Erick Charles

PO Charles has been a member of the NYPD for 2 years and has never had a CCRB complaint substantiated against him (*Enc. 1a*).

PO Patrick Smith

PO Smith has been a member of the NYPD for 3 years and has had one CCRB complaint substantiated against him. In CCRB case #200512451 PO Smith was substantiated on the allegations of

Abuse of Authority-vehicle searched and Discourtesy-word. No penalty has been imposed as of yet. PO Smith also has one other complaint currently being investigated by the CCRB, case #200513092 (*Enc. 1b*).

Complainants CCRB History

§ 87(2)(b)

This is the first of two complaints § 87(2)(b) has filed with the CCRB. § 87(2)(b)

Conclusions

Undisputed Facts

§ 87(2)(b) was arrested by PO Gonzalez for possessing a forged 20-day New Jersey temporary registration on his vehicle. § 87(2)(b) was taken to the 69th Precinct where he was placed in a holding cell before being transported to central booking. While in the cell § 87(2)(b) became loud and boisterous prompting Lt. McPherson to order PO Smith and PO Charles to transport § 87(2)(b) to central booking immediately. PO Smith and PO Charles removed § 87(2)(b) from the cell and escorted him outside, to the back of the precinct, to a waiting police car. PO Smith and PO Charles were not able to place § 87(2)(b) into the police car and § 87(2)(b) was escorted back into the precinct where he was again placed in a holding cell. Lt. McPherson then called ESU to the scene. ESU placed § 87(2)(b) in a “wrap” and he was transported to § 87(2)(b) as an EDP.

Assessment of the Evidence

§ 87(2)(b) admitted that while he was in the holding cell he was being loud and trying to draw attention to himself. § 87(2)(b) stated that he was yelling, “Why does he remember me from 11 years ago, you’re a loser, what type of people do things like this, this is harassment” referring to PO Gonzalez. § 87(2)(b) stated that he was yelling loud enough so that all of the officers in the precinct could hear him. § 87(2)(g)

§ 87(2)(b) Lt. McPherson then instructed PO Smith and PO Charles to transport § 87(2)(b) to central booking. PO Charles and PO Smith removed § 87(2)(b) from the cell and escorted him to a police car that was parked at rear of the precinct. § 87(2)(b) maintained that PO Charles then slammed him into the back of the police car, stomach first and then grabbed him around the throat. § 87(2)(g)

§ 87(2)(b) During this time § 87(2)(b) stated that his pants fell down around his ankles and he was unable to pick them up. § 87(2)(b) asked PO Charles and PO Smith numerous times to pick up his pants so he could get in the car and sit down but the officers refused. § 87(2)(b) stated that he was not struggling or refusing to get into the car but was unable to do so because his pants were around his ankles. When PO Smith noticed that § 87(2)(b) was not getting into the car PO Smith came over to him, grabbed him by the handcuffs and dragged him backwards into the precinct causing him to hit his left shoulder on a metal object, causing an abrasion.

PO Charles stated that § 87(2)(b) s pants did fall down while they were walking to the car from the precinct and PO Charles picked up § 87(2)(b) s pants and told him to hold them up. According to PO Smith, § 87(2)(b) s pants did not fall down at any time during the incident. PO Charles maintained that § 87(2)(b) then began yelling, “Help, help I don’t want to go” and refused to get into the car. PO Smith stated that § 87(2)(b) was yelling that he and PO Charles were “Raping him and killing him.” § 87(2)(g)

§ 87(2)(g)

PO Charles and PO Smith did not observe any injuries on § 87(2)(b) and § 87(2)(b) did not display any injuries during his CCRB interview. § 87(2)(g)

Recommendations

Allegation A: PO Erick Charles slammed § 87(2)(b) against a car.

Allegation B: PO Erick Charles used a chokehold against § 87(2)(b)

Allegation C: PO Patrick Smith used physical force against § 87(2)(b)

§ 87(2)(b) alleged that before attempting to put him in the police car, PO Charles slammed him chest first against the back of the car and then grabbed him around the neck and placed him in a chokehold when he would not get into the car. § 87(2)(b) maintained that he could not get into the car because his pants had fallen down which prevented him from sitting down and PO Charles refused to pick them up for him. PO Charles stated that he did in fact help § 87(2)(b) pick up his pants but § 87(2)(b) refused to get into the car nonetheless. It is also alleged that when PO Smith saw that § 87(2)(b) was not getting into the car he approached § 87(2)(b) grabbed him by the handcuffs and dragged him backward into the precinct causing § 87(2)(b) to slam his shoulder into a metal mailbox.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B and C** be **Unsubstantiated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: